

Writ – C No. 29684 of 2012

Pradeep Kumar

vs.

State of U.P. and Others

Hon'ble Sheo Kumar Singh, J.**Hon'ble Ram Surat Ram (Maurya), J.**

1. Heard Sri Gaurav Tiwari for the petitioner and Standing Counsel and Sri R.K. Yadav for the respondents.
2. This writ petition has been filed for quashing the demand notice dated 20.01.2012 by which, the petitioner was directed to deposit Rs. 41,460/- as electricity bills.
3. It is alleged that the petitioner took electricity connection for domestic purposes on 18.03.2002. The petitioner was depositing the bills regularly up to November 2011. However notice dated 20.01.2012 has been issued to deposit arrears of Rs. 41,460/-.
4. The counsel for the petitioner submits that the petitioner is ready to pay the amount of bills. Now recovery of heavy amount is being done. Due to poor financial condition, the petitioner is not able to pay the entire outstanding dues at a time. In case, he is allowed to pay the outstanding dues in easy installments, he will be able to deposit the entire outstanding dues. The counsel for the respondents submits that the department is interested in realization of the dues. In case the petitioner is ready to pay the dues in installments, then the department will have no objection.
5. Paragraph 6.14 of the U.P. Electricity Supply Code, 2005 makes a provision that Executive Engineer or any officer higher in rank to him, may extend the facility of installment to those customers who are in financial distress position. Since the petitioner is ready to pay the outstanding dues, accordingly, in view of the aforesaid provision, it is provided that the petitioner may pay the entire amount of

the bills in three equal installments, first installment of which shall be paid on or before 31.7.2012, the second installment be paid up to 30.09.2012, the third and final installment be paid up to 30.11.2012. In case of default in payment of the amount of any installment, the respondents will be free to recover the entire amount from the petitioner. The respondents will not initiate recovery proceeding in the meantime.

6. In case the petitioner deposits the first installment, then the stay order shall continue up to the date of deposit of the second installment and on deposit of the second installment, it shall continue till the date of deposit of the third installment.

7. With the aforesaid direction, the writ petition is **disposed of**.

Order dt: 07/06/2012

Jaideep/-